THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution from ships, NOTING article 16 of the International Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering and adopting amendments thereto, - Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering and adopting amendments thereto, RECOGNIZING the need to provide amandatory framework for ships operating in polar waters due to the additional demands on ships, their systems and operation, which go beyond the existing requirements of MARPOL, and other relevant binding IMO instruments, NOTING resolution MEPC.264(68), by which the Committee adopted the International Code for Ships Operating in Polar Waters (Polar Code) with respect to its environment-related provisions, NOTING ALSO that the Maritime Safety Committee, at its ninety-fourth session, adopted, by resolution MSC.385(94), the International Code for Ships Operating in Polar Waters with respect to its safety-related provisions, and by resolution MSC.386(94), amendments to the 1974 SOLAS Convention to make the safety-related provisions of the Polar Code mandatory, HAVING CONSIDERED proposed amendments to MARPOL Annexes I, II, IV and Vto make - the 1974 SOLAS Convention to make the safety-related provisions of the Polar Code mandatory, HAVING CONSIDERED proposed amendments to MARPOL Annexes I, II, IV and Vto make the environment-related provisions of the Polar Code mandatory, 1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to Annexes I, II, IV and V, the text of which is set out in the annex to the present resolution; 2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 July 2016, unless, prior to that date, not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world'smerchant fleet, have communicated to the Organization their objection to the amendments; 3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into f